

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM CB (COMMUNITY BUSINESS) TO MUB (MIXED-USE BUSINESS EMPHASIS) FOR PROPERTY GENERALLY LOCATED AT THE SOUTHWEST CORNER OF THE INTERSECTION OF MCCANN AVE. AND E. PERSHING BLVD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That on March 1, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 3. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lots 9, 10, 11 & 12, Block 1, Holmes Corner, Cheyenne, Wyoming is hereby changed to MUB Mixed-Use Business Emphasis.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



A COMMUNITY OF CHOICE

Planning and Development Department
2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Lisa Pafford, Deputy Director
Subject: UDC-21-00005: Portion of Holmes Corner Zoning Map Amendment
Date: March 8, 2021

Background:

The item for consideration is a *Zoning Map Amendment*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 3/8/2021
- Public Services Committee 3/16/2021
- Second Reading 3/22/2021
- Public Services Committee 4/6/2021
- Third and Final Reading 4/12/2021

Planning Commission Recommendation:

The Planning Commission heard this item at their March 1, 2021 meeting and by a vote of 4-0 (2 absent), recommended the Governing Body approve the proposed zoning map amendment.

The Planning Commission Staff report is attached and is unchanged.

Attachments:

1. Planning Commission Staff Report



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CITY OF CHEYENNE PLANNING COMMISSION

MARCH 1, 2021

STAFF REPORT

FILE: UDC-21-00005: A portion of Holmes Corner

REQUEST: A request to rezone approximately 2.51 acres of land from CB Community Business to MUB Mixed-use Business Emphasis

LOCATION: South of and adjacent to E. Pershing Blvd., west of McCann Ave.

APPLICANT: Cheyenne Health & Wellness Center, dba HealthWorks

AGENT: Christofer Lovas, AVI pc

OWNER: Cheyenne Health & Wellness Center, dba HealthWorks

ZONING: CB Community Business

PURPOSE: To allow building closer to the front street side for development

PREPARED BY: Lisa Pafford, Deputy Director



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 9, 10, 11 & 12, Block 1, Holmes Corner, Cheyenne, Wyoming from CB to MUB as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from CB Community Business District to MUB Mixed-Use Business District for 2.51 acres of vacant land to be developed as a Medical Office/Clinic including dental and pharmacy development.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Mixed-Use Commercial	CB	Undeveloped
North	Mixed-Use Commercial	MUB	Bank, Medical Office, Restaurant
South	Mixed-Use Commercial	MUB	Residential & undeveloped
East	Mixed-Use Commercial	MUB	Retail, Restaurant
West	Mixed-Use Commercial	CB	Car Wash

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. Development will require infrastructure improvements and investment.

The Future Land Use Designation for this property is Mixed-use Commercial. The optimal zoning for the proposed future land use designation is the MUB zone. The intended MUB zoning of this property is highly compatible with PlanCheyenne.

The proposed zone change is in accordance with the plans and policies outlined in PlanCheyenne and **complies** with review criteria 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

The proposed MUB zoning is compatible with the surrounding area considering the existing zoning and the comprehensive plan's policies for the area. The proposed MUB zoning allows many of the same commercial uses as the CB zoning (although more intense uses may be subject to a higher standard of review).

The properties to the east and north of this proposed zone change are currently zoned MUB and are partially developed as such, with some vacant properties located north across Pershing Blvd. The property to the south is also currently zoned MUB, although it is currently developed with a mobile home park. CB Community Business exists to the west and are largely developed with Community Business – style development patterns.

The proposed zone change for the subject property **complies** with review criteria 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current CB Community Business zoning allows a wide variety of commercial uses. The CB zone generally has a lower level of design standards than MUB zoning. The MUB zone allows a broader mix of uses, including most types of residential uses, but is a little more limiting on intensity of commercial uses. The proposed MUB zoning also encourages structures to be built closer to the street with higher design standards.

The property contained in this zone change were platted with an access easement to the south and vehicular access to Pershing would be limited. MUB zoning allows buildings to be built closer to the northern property line than CB zoning would allow, therefore permitting a higher utilization of the property.

The proposed zone change **complies** with review criteria 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The MUB zoning is intended to have a highly connected street network with smaller blocks. Future site development will be reviewed per the site plan review process. *A commercial Park Enhancement fee is due for this property in the amount of \$2,750 to be paid prior to application of building permits.*

The proposed zone change for the subject property **complies** with review criteria 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The MUB zone is intended to have a diverse mix of uses in a compact development pattern. Uses are intended to be integrated with smaller, walkable blocks. The MUB zone is also intended as an alternative to CB zoning for a commercial activity center. The subject property is surrounded by development and has limited opportunity to create the highly-connected, smaller blocks encouraged by MUB zoning. The subject property must meet the applicable design requirements of the Unified Development Code.

The proposed zone change for the subject property **complies** with review criteria 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The applicant is seeking the rezoning for all four lots with the expectation of developing a medical office/clinic facility. Such future development could be accomplished with the CB zone designation, but the applicant desires to design their development with the structures closer to the street. The MUB zone designation will allow that in addition to higher design standards. Should the specifically-proposed development not be executed, future development on that portion of the parcel would have a similar variety of use options.

The proposed zone change **complies** with review criteria 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No reviewing agencies provided concerns or recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criteria 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criteria 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

This zone change application proposes changing the zoning of existing lots, undeveloped land west of McCann Ave., on the south side of E. Pershing Blvd. from CB Community Business to MUB Mixed-Use Business Emphasis. The proposal is to develop all four lots of the property for medical office/clinic uses including dental and pharmacy.

The current Future Land Use designation for the property is Community Business, and the optimal zone for that designation is the current CB Community Business zone. The proposed designation of the MUB zone is the suggested zone for the Mixed-use Commercial designation. The developer proposes to take advantage of the MUB zoning district that encourages structures to be built closer to the street with higher design standards.

The proposed MUB zoning is compatible with the surrounding area considering the existing zoning and the comprehensive plan's policies for the area. The proposed MUB zoning allows many of the same commercial uses as the current CB zoning.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d) The zoning map amendment application is consistent with the zoning of surrounding properties and responds to current market demands for the subject property. The zone change meets the review criteria of UDC 2.2.1.(d); therefore, staff recommends approval of the zoning map amendment as submitted by the applicant.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

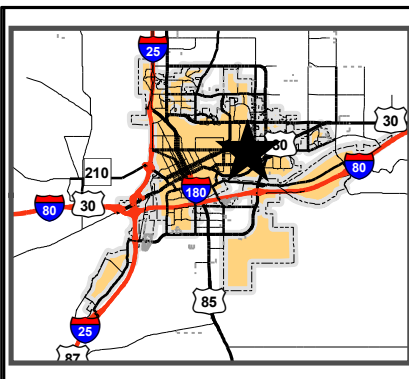
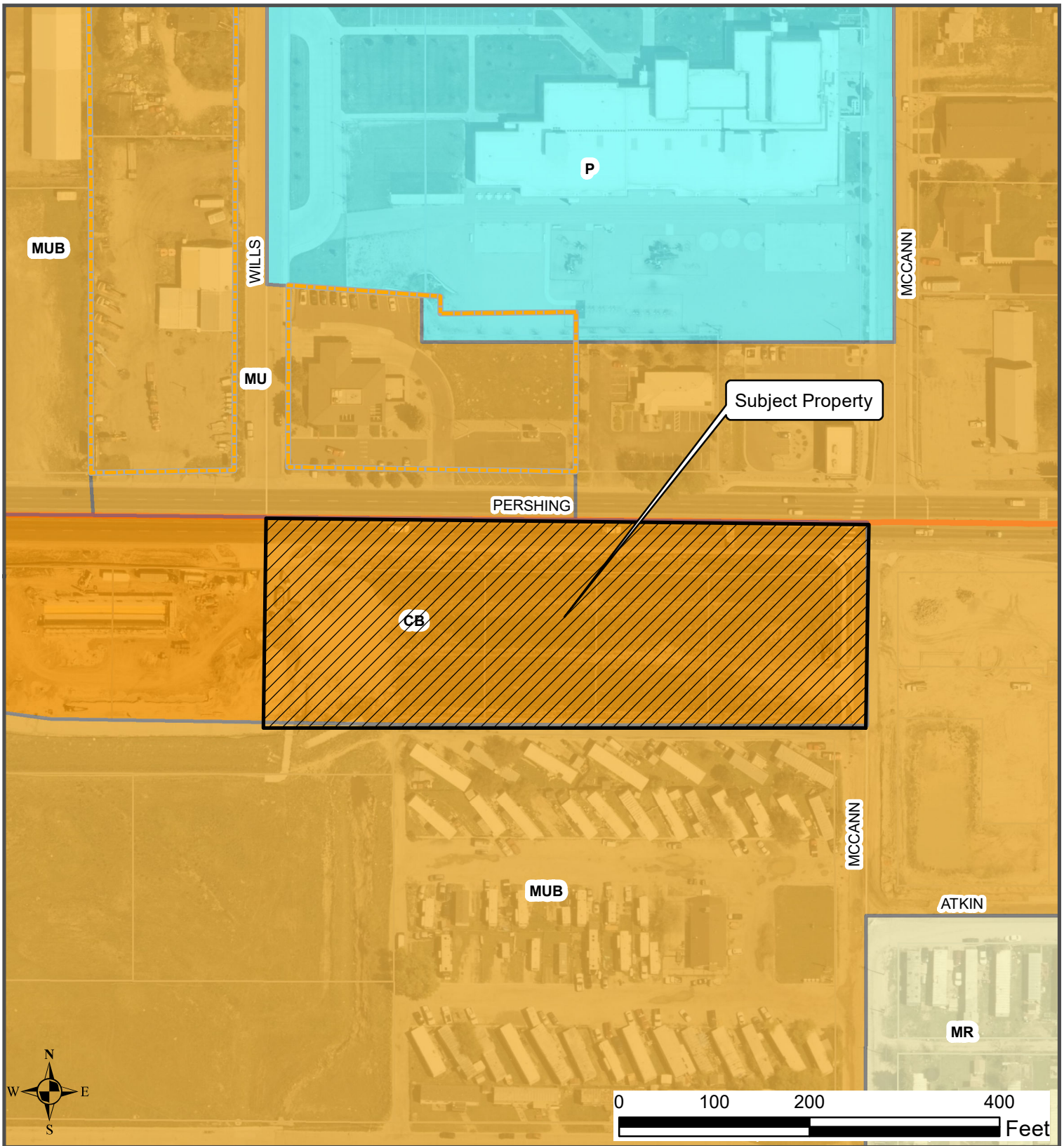
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from CB to MUB.

ATTACHMENTS:

1. Zoning Map
2. Land Use Plan Map
3. Master Application
4. Applicant Provided Zone Change Map

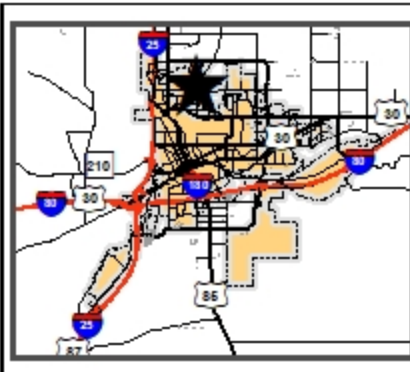
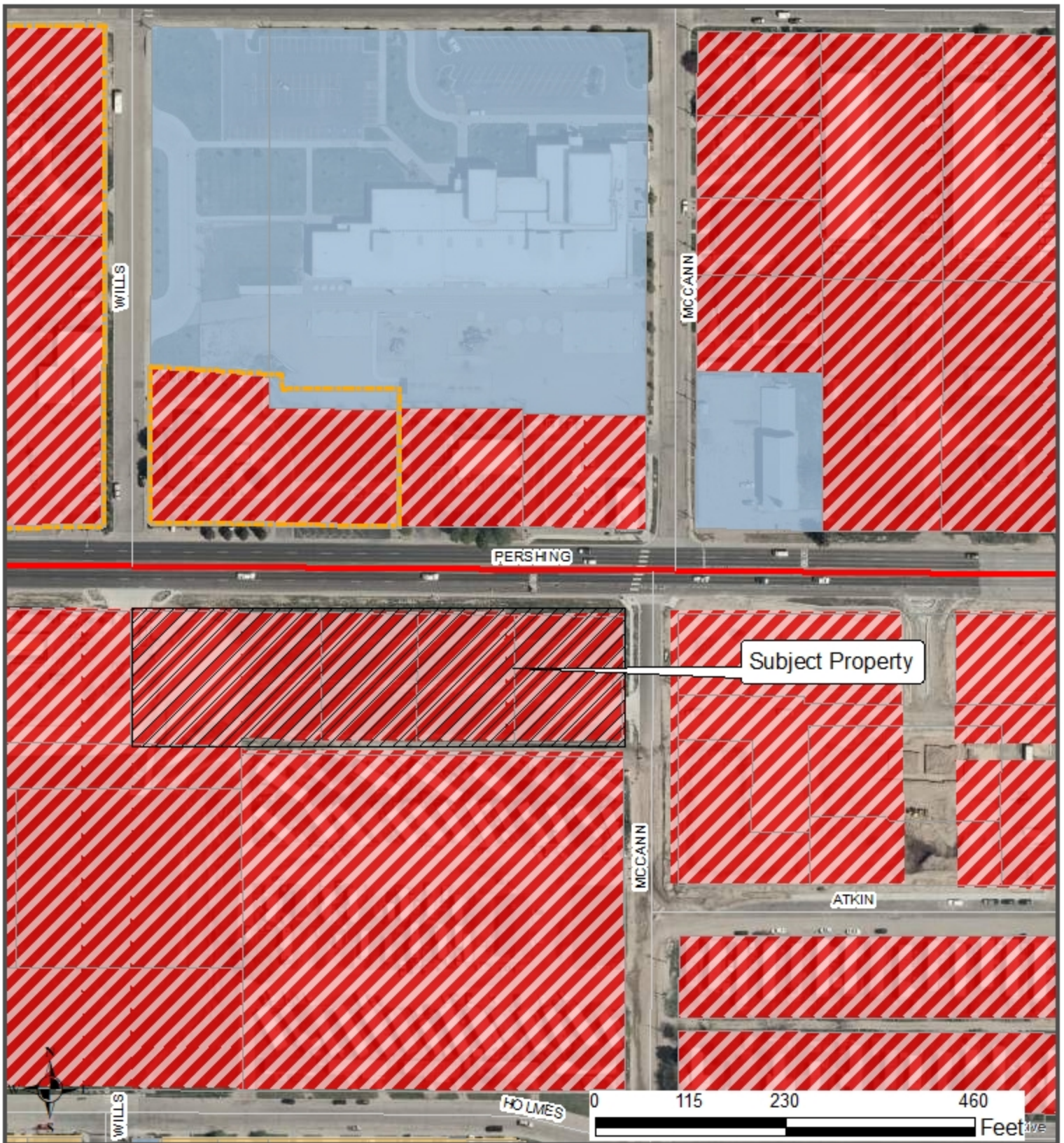


Attachment 1: Zoning Map UDC-21-00005

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend

Nov19_CityLimits	A-1 / Agricultural and Rural Residential
Interstate	A-2 / Agricultural
Principal Arterial	AG / City Agricultural
Minor Arterial	MUR / Mixed Use Residential Emphasis
Major Collector	CBD / Central Business District
Minor Collector	CB / Community Business
Local	NB / Neighborhood Business
Private	MU / Mixed Use - County
Platted not built	MUB / Mixed Use Business Emphasis
HR / High Density Residential	MUE / Mixed Use Employment Emphasis
MR / Medium Density Residential	HI / Heavy Industrial
LR / Low Density Residential	LI / Light Industrial
NR-2 / Neighborhood Residential - Med. Density	P / Public
NR-3 / Neighborhood Residential - High Density	AD / Airport District
AR / Agricultural Residential	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map UDC-21-00005

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Legend

- | | | |
|--------------------|------------------------------|--------------------------------------|
| Nov 19 City Limits | Agriculture/Rural | Mixed-Use Commercial Activity Center |
| Interstate | Rural Residential | Community/Regional Activity Center |
| Principal Arterial | Urban Transition Residential | Community Park Site |
| Minor Arterial | Urban Residential | Highway Corridor/Gateway |
| Major Collector | Mixed-Use Residential | Urban Service Boundary |
| Minor Collector | Mixed-Use Commercial | Natural/Cultural Resource Area |
| Local | Mixed-Use Employment | State Lands |
| Private | Industrial | |
| Planned not built | Central Business District | |
| | Community Business | |
| | Public and Quasi-Public | |
| | Military/Federal | |
| | Open Space and Parks | |

Planning and Development: Zoning Map Amendment Application

Submission date: **7 January 2021, 3:45PM**

Receipt number: **6**

Related form version: **9**

General Information

Applicant Name: **Christofer Lovas - AVI**

Applicant Address: **1103 Old Town Lane**

Applicant City: **Cheyenne**

Applicant State: **Wyoming**

Applicant Zip Code: **82009**

Applicant Phone: **307-637-6017**

Applicant Email: **lovas@avipc.com**

Representative Name: **Christofer Lovas**

Representative Address: **1103 Old Town Lane**

Representative City: **Cheyenne**

Representative State: **Wyoming**

Representative Zip Code: **82009**

Representative Phone: **307-637-6017**

Representative Email: **lovas@avipc.com**

Owner Name: **Cheyenne Health and Wellness Center dba
HealthWorks**

Owner Address: **2508 E. Fox Farm Road**

Owner City:	Cheyenne
Owner State:	Wy
Owner Zip Code:	82007
Owner Phone:	307-433-8060
Owner Email:	dsquires@wyhealthworks.org
Who is the primary contact regarding this application?	Applicant
Letter of Authorization	Executed Letter of Authorization.pdf
Project Location (Street Address or General Location):	Pershing Blvd and McCann Ave
Assessor's Parcel ID number(s)	14663420401400, 14663420401500, 14663420401600, 14663420401700
Total Project Area	2.51 acres
Existing Zoning	CB - Community Business
Requested Zoning	MUB - Mixed-use Business Emphasis

Application-Specific Questions

Written Statement	Please describe your proposal here:
Zoning Map	4436 ZONE CHANGE.pdf
Notification Letter	ZONE CHANGE MAILING LIST.pdf HEALTHWORKS ZONE CHANGE NOTICE.pdf
Supporting Documents / Information	HeathWorks Zone Change Application Executed.pdf MeetingSummaryMedicalHolmesCorner.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.	Acknowledgement of this review criteria
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The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Christofer S Lovas - AVI

A handwritten signature in blue ink, reading "Christofer S. Lovas". The signature is written in a cursive style with a large initial 'C' and a distinct 'S'.

[Uploaded signature image: Christofer Lovas Signature.jpg](#)

Please enter an email address for an email receipt.

lovas@avipc.com



DRAWING NO. 1 OF 1